

EC063728 EC063728

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#13 - SURJIT P. SONI VS CARTOGRAPH, INC.

MOTION TO SEAL EXHIBITS TO MOTION TO AMEND JUDGMENT

Defendants seek to seal three exhibits lodged conditionally under seal in support of their Motion to Amend the Judgment:

1. Exhibit C, a letter of authorization dated October 14, 2024 instructing Morgan Stanley Smith Barney LLC ("MSSB") to transfer two accounts to the Soni Family Trust;
2. Exhibit F, the Soni Family Trust instrument; and
3. Exhibit G, two MSSB account applications and client agreements signed on October 23, 2024.

The motion states that the documents were produced by MSSB in connection with a post-judgment order to appear for examination and were designated "Confidential" under a protective order entered in related litigation.

Tentative Ruling

Defendants Timothy Tierney and Simplelayers, Inc. fka Cartograph, Inc.'s motion to seal Exhibits C, F, and G to Defendants' Motion to Amend the Judgment is GRANTED.

The Court finds an overriding interest in protecting the privacy of the personal financial and trust information contained in the exhibits at issue. The exhibits consist of account-transfer instructions, a family trust instrument, and MSSB account applications and client agreements. The motion also states that Exhibit G contains private financial information. The protection of confidential business agreements and proprietary financial information constitutes an overriding interest that justifies sealing under Rule 2.550(d). The California Constitution's right of privacy extends to confidential financial information. (See *Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 503 [the right of privacy "embraces confidential financial information in 'whatever form it takes, whether that form be tax returns, checks, statements, or other account information'"].)

The Court further finds there is a substantial probability that this privacy interest will be prejudiced if the records are not sealed, because public filing would disclose the financial and trust information itself.

The request is narrowly tailored. Defendants do not seek to seal the entire motion or case file; they seek to seal only Exhibits C, F, and G, and the motion papers use placeholder pages for those exhibits in the public filing. The sealing order therefore reaches only the specific documents containing the protected material. (Cal. Rules of Court, Rule 2.550(e)(1)(B).)

The Court also finds there is no less restrictive means to protect the interests at issue on this record. Each challenged exhibit is itself a discrete financial or trust document.

Accordingly, the Court expressly finds that: (1) an overriding interest overcomes the right of public access as to Exhibits C, F, and G; (2) that overriding interest supports sealing those exhibits; (3) there is a substantial probability the interest will be prejudiced absent sealing; (4) sealing only Exhibits C, F, and G is narrowly tailored; and (5) no less restrictive means exist to protect the interest. (Cal. Rules of Court, Rule 2.550(d).)

The motion to seal is GRANTED. Exhibits C, F, and G to the Declaration of Jessica Weisel in support of Defendants' Motion to Amend the Judgment shall remain under seal. All other portions of the motion papers shall remain in the public file.